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California enacts first gun and ammunition tax in the country

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(KTXL) — California Governor Gavin Newsom signed several firearms and ammunition-related bills into law on Tuesday, including one to tax guns and ammunition and another that places more rules on people seeking a concealed carry weapons permit.

The federal government already taxes the sale of guns and ammunition at either 10% or 11%, depending on the type of gun. With the signing of AB 28 on Tuesday, California will now add an 11% excise tax on the purchase of guns and ammunition, an amount that the bill's author states is lower than the excise tax on marijuana sales.

This makes California the only state with a separate tax on guns and ammunition, according to the gun control advocacy group Brady.

The money will pay for security improvements at public schools and a variety of gun violence prevention programs, including those geared toward young people in gangs. The money from the federal tax, which has been in place for more than 100 years, pays for wildlife conservation and hunter education programs.

The most significant bills sent to Gov. Newsom in 2023

There are exceptions to the tax, such as police agencies and businesses with extremely low sales.

The bill's author, Assemblymember Jesse Gabriel, said that the tax money will go toward preventing gun violence and reducing the costs associated with the health and criminal justice systems when treating patients of gun violence.

Gabriel cited the federal tax on guns and ammunition, which funds hunting and wildlife programs across the country, as a reason to have a statewide tax to fund gun safety programs.

"If we can have a tax to protect wildlife, we can have one that protects people," Gabriel said.

Another significant bill signed into law on Tuesday is SB 2, by Sen. Anthony Portantino, which will change the rules for carrying concealed weapons.

California's new law requires permit holders to be 21, bans concealed weapons from most public places — parks, schools, government buildings, hospitals, and places where alcohol is sold, as well as at public demonstrations and gatherings.

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The California Rifle and Pistol Association has already sued to block one new law Newsom signed on Tuesday that bans people from carrying guns in most public places. The law overhauls the state's rules for concealed carry permits in light of the U.S. Supreme Court's decision in New York State Rifle and Pistol Association v. Bruen.

Sen. Portantino said it is common sense to want to protect yourself with a concealed firearm, but that firearms may not be needed at a ballfield or at a restaurant.

"You as a responsible person with that permit will need to do a little work to know where it is allowed," Portantino said.

Another new law will require that all pistols sold in the state beginning in 2028 have microstamping technology, which will leave unique markings on bullets that will make it easier to trace which weapon was used in a shooting.

The signings come just days after a Newsom-led campaign to amend the U.S. Constitution passed out of the California Legislature. The measure passed by legislators calls for a state Constitutional Convention to consider additional federal rules on firearms purchases and use, but two-thirds of states need to pass similar measures in order for the process to advance.

California has some of the lowest gun death rates in the country, ranking 43rd out of 50 states with 9 deaths for every 100,000 people, according to 2021 data from the Centers for Disease Control and Prevention. But violent crimes have increased recently. The violent crime rate increased by 6.1% in 2022, according to the California Department of Justice.

The Associated Press contributed to this article.

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